From: Rich McLean <rich@richmclean.com.au>
Subject: Application for conciliation from Rich Mclean
Date: 11 March 2020 at 8:28:59 pm AEDT
To: humanrights@vcat.vic.gov.au
Cc: Rich McLean <rich@richmclean.com.au>

RE: The Age (Fairfax Vs Rich Mclean)

please see attached documentation for review and action.

I have pasted the wording in the body of the PDF here because it is hard to see on the PDF copy.

Thankyou,

Rich McLean,

- Doctor of Philosophy Research Student,
- Victoria University, Melbourne.
- College of Education,
- PH : (+61) 0400 639 248
- rich@richmclean.com.au

Artist, Illustrator, Author, PhD Researcher, NDIS Provider, Academic Support Worker

https://www.richmclean.com.au/

I acknowledge the Indigenous people as the Traditional Custodians of the lands where we live, learn and work.

POSTED TEXT IN PDF:

DETAILS OF THE INCIDENTS What happened to make you think you have been • discriminated against and/ or • sexually harassed and/ or • vilified and/ or • subject to other prohibited conduct Please include the following details in your summary • years, month, dates and times of the incident/s-if known • who was responsible for each incident that happened and what is their relationship is to you? • how has the conduct affected you?

When I applied for my job as an illustrator and news graphics artist at Fairfax, 'The Age', in 1999, I was asked to answer in a questionnaire and in it I had to answer the following questions:

1) Have you had male to male sexual intercourse in the last six months? (Even though I am gay and was still coming out to myself I answered 'no' because I wanted the job).

2) Have you ever had a mental illness or been hospitalised in an institution? (Even though I was diagnosed with schizophrenia when I was 21 and had relationships with the mental health services, obviously i answered no because I wanted the job).

To ask this is illegal. It is also vilification. There must be other people who this was asked of from the time, although I have no evidence of it.

I worked for The Age for nearly five years, until 2004 when I was discriminated against and was forced to leave my job by being rosetred off so I had no choice but to leave.

The reason as I see it was because of prejudice with my public profile and what people knew about me re: sexuality and mental illness. It was also to do with a personal conflict between management and I and politics and prejudice.

In that time, (I was employed), I wrote a human rights awarded autobiography on my experience with mental illness titled 'Recovered, Not Cured, a journey through schizophrenia (Allen and Unwin, 2002)', which detailed bisexuality, my mental illness struggle, and drug use. I was very public about it and it was awarded SANE Australia's 'Book of the year.'

My former employer, (The Herald Sun), ran a very public and defamatory story in the Sunday Magazine the year I was forced to leave on the book titled 'MY DESCENT INTO MADNESS - HOW SCHIZOPHRENIA STOLE RICHARD MCLEANS MIND' (See evidence). It vilified me and my social standing at The Age and they acted to get rid of me.

I note that the manager Jamie Brown's now wife still worked at The Herald Sun, that I used to work there - and everyone knew each other in the newspaper game. My reputation had been all but vilified and ruined.

The book was actually a triumph of recovery and a hopeful book and I was a very public mental health advocate across TV and radio. It won SANE Australia's 'Book of the Year' (2003). I was shamed publicly and burdened by my honesty and I was forced to leave The Age after being rostered on

for only 3 hours within the next foreseeable three weeks- they knew my finances and they knew I would not be able to oblige and cover my rent.

Their reason (see employment separation certificate evidence), was that I resigned.

The management had offered me a cover note before this if I wanted to go for a loan, because I was permanent casual. This gives the suggestion I would have been there for some time in managements eyes.

I was forced to leave because of Jamie brown, the Manager, and Lousa laRocca, the person that did the rosters, roster me off so I had no choice but to leave. They conspired to do this with upper management in light of my public shaming, and the personal politics that played out between myself and management and staff.

The public shaming of what is a resilient and hopeful triumphant book did not sit well with management, nor Jamie Brown, who was often picked on for for his supposed homosexuality and femininity by the likes of Steve Contessa, (an artist at The Age at the time), and Louisa, who was a Jehovas Witness-and was forcing her beliefs on me, often by example of showing me where Soddom and Gorriah were on the maps in the art department. She had clear views that I was an abomination and told me so.

Jamie Brown the manager also suffered mental illness as did others in the department and I believe he was threatened by my public vocal advocacy and that it may expose him.

Records show that in my separation certificate, The Age Stated that I 'resigned' and no compensation was being sought. This was in 2004. (See Evidence).

This is clearly not the case as per my emails protesting why I had to leave to management and my evidence. (see attached emails from the time that was sent to management).

I was simply discriminated against because I had a mental illness and I was gay, and publicly shamed.

I made a complaint to the HREOCV and despite the Age saying I resigned, they agreed to and attended a conciliation in 2005 which contradicts that i

resigned; which admits a conciliation or wrongdoing happened on behalf of The Age.

I asked for over 450K because I had intended a long career at The Age for at least 10-15 years. I learnt about 45K a year and I had plans for a long career there at a job I loved. That equals $450000-$675000.

I was under duress in the conciliation; suffering from mental illness, and whilst they had senior HR people and lawyers at the conciliation, I only had myself and a casual friend. It was unfairly unbalanced and rigged in their favour and I had no representation or advocacy.

I was under duress to sign away my rights and agree not to sue them for anything if I accepted just over $7k.

I was stressed did not know my rights as a gay man nor someone with a mental illness, had no one advocating nor supporting me, and was under duress when I signed a deed.

I have always regretted signing that deed, because it forbade me from suing them in any other way.

The reason I am re-visiting this is that in late 2019 I received evidence from the tax office that my 7K payment was actually paid by my own money from my super company which was affiliated with The Age and is now media super. (see attached).

My place of employment did not pay me the money, making the deed, which no one has a copy of, void.

I believe under these facts I am entitled to an exemption to revisit the case as the conditions of the deed were not adhered to. I have bought up the issue with AFCA and the super company has not given a reason why the money came from them and not The Age, that would have fulfilled the deed.

They knew I was financially desperate and homeless and they took advantage of this. The conciliator had no compassion not advocacy for people with a mental illness nor gay people, it seemed - and she strongly urged I sign it under duress in an environment that was biased and stacked in their favour.

I have made a complaint to Australian Financial Complaints Authority and Media Super have denied everything and we have not come to a determination whether I was paid with my own money and why it was that Fairfax did not pay me.

Complaint with Media Super Limited, case number 700088 (No outcome).

I have evidence from the ATO that it was paid by the super company and not Fairfax. (See attached evidence).

I realise this is a long time since the incident in 2005 but I have only just discovered the injustice happening with the method of my compensation that will open up legal proceedings to sue the age for loss of income and discrimination with mental illness and on the basis of sexuality and additionally not providing adequate support for people with mental health issues in my workplace.

I was clearly was a champion producer of the art department …and I also want to sue for loss of wages.

In addition to that i would like compensation for the extreme prejudice I received following me being fired and the many houses I lived in while I tried to make ends meet for about the next 15 years. This has affected me by my reputation being ruined and the fact that despite my talents, other employers were prejudiced, like the age was, about a 'bisexual drug using schizophrenic'.

If I had sufficient advocacy and support and was not treated unfairly and out of balance with power in the conciliation my life would have turned out very differently.

I actually have a human rights award from the HREOC. (See evidence).

The age admitted wrongdoing by attending a conciliation in which I was outnumbered and unbalanced. I always regret not suing them for discimination based on my sexuality and my public profile as someone with schizophrenia. When I found out late in 2019 that the 'conciliation' amount was paid for - possibly by my own money from my own super by my super company - I was outraged. The deed that we signed is no longer relevant, and I hope that a court will allow me the opprtunity to finally bring this case to justice re: timeframes. My life would have been very different if my place of employment did not fire me unlawfully or discriminate against me. I am furious that media super will not acknowledge through AFCA that they have paid me the agreed conciliation amount of just over 7K when i was treated unfarly with no representation or advocacy and also under duress.

Affidavit
Application
Payment
Evidence

Evidence of unjust payment from Super
Equal Opportunity Fudged meeting
Separation certificate citing resignation - untrue
Evidence from ATO Just Super paid me conciliation money from under duress
‘Resignation’ from The Age
Letter on my apparent resignation sent to member of ’The Age’
Evidence I wanted to work into the future
Reply from The Age about employment